

THE KING'S BENCH (FAMILY DIVISION)
_____ **Centre**

BETWEEN:

Petitioner/Applicant

- and -

Respondent

-
-

FOAEAA ORDER - AUTHORIZATION

Locate

Pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) authorizing a court official to request information for the **enforcement of an order related to parenting, contact, custody or access**

(name, address, e-mail, and telephone number of party filing)

THE KING'S BENCH (Family Division)

Centre

THE HONOURABLE)
) , the day of , 20__
)

BETWEEN:

– and –

Petitioner/Applicant

Petitioner/Applicant

Respondent

ORDER

- 1.0** This matter having proceeded at the Law Courts Complex, 408 York Avenue, Winnipeg, Manitoba, R3C 0P9, at the request of the _____.
- 2.0** On the application of _____ made pursuant to
(Full name of party making the application)
section 7 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada), in relation to the enforcement of an order related to parenting, contact, custody or access pronounced _____
(specify date)
by _____.
(specify Judge, Court, and province/territory/country)

information to enforce an order relating to parenting, contact, custody or access and the order is not likely to jeopardize the safety or security of any person.

(Strike out paragraph 5 if the other party was given notice of the application)

5.0 THIS COURT is also satisfied that in relation to the application to enforce an order relating to parenting, contact, custody or access, reasonable steps have been taken to locate the person identified in the affidavit in support of the section 7 application in respect of whom the applicant is seeking to enforce an order relating to parenting, contact, custody or access and that the person has not been located.

6.0 THIS COURT ORDERS pursuant to section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that the Registrar of the Court of King's Bench of Manitoba is authorized to make an application to the Minister of Justice Canada pursuant to section 12 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) to search for and release only the following information below that can be found in federal information banks designated under section 2 of the Release of Information for *Family Orders and Agreements Enforcement Assistance Regulations*, SOR/2023-125:

(Strike out any of the following clauses (a), (b), (c) or (d), if not applicable)

a) The address of _____
_____ *(Full name of person believed to have the child or children with them)*

b) The name and address of the employer of _____
_____ *(Full name of person believed to have the child or children with them)*

(c) The name and address of the following child or children who is or are the subject of the order related to parenting, contact, custody or access and who is or are believed to be with the person named in clause (a):

(Name of the child)

(Name of the child)

(Name of the child)

(Name of the child)

(d) the name and address of the employer of the following child or children who is or are the subject of the order related to parenting, contact, custody or access and who is or are believed to be with the person named in clause (a):

(Name of the child)

(Name of the child)

(Name of the child)

(Name of the child)

(Strike out paragraph 7 if this order is made with notice to the person whose information is being sought)

7.0 THIS COURT ORDERS pursuant to section 11 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that a notice under section 12.1 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) and a copy of this Order shall not be sent by the Minister of Justice Canada to the person whose information is being sought.

8.0 THIS COURT ORDERS pursuant to subsection 13(2) of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that the information received by the Registrar of the Court of King's Bench of Manitoba from the Minister of Justice Canada and given to the court shall be sealed until further order of the

court.

9.0 THIS COURT ORDERS that the issue of disclosure of the information is adjourned pending receipt of the information by the court.

(Strike out paragraph 10 if this order is made with notice to the person whose information is being sought)

10.0 THIS COURT ORDERS pursuant to *The Court of King's Bench Act* and Rules that a copy of this Order shall be served on the Respondent by regular letter mail, courier or fax addressed to {specify name, additional details and/or address in full}, within 20 days of the date of signing.

(Date of signature)

(Signature of judge)